

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

HUEY FONTENOT,

Petitioner

VS.

LEIA DIANNE HARBOUR-FONTENOT,

Respondent

) Case Number: FDI-25-801885

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, PROPERTY CONTROL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Huey Fontenot (Husband) and Respondent Leia Dianne Harbour-Fontenot (Wife) married on 4/14/2021. Husband contends the parties separated on 11/1/2024, for a marriage of 3 years and 6 months. Wife contends the parties separated on 9/18/2024, for a marriage of 3 years and 5 months. The parties have no minor children. Husband is self-represented. Wife will be represented in limited scope by Flicker Kerlin LLP at the 8/11/2026 hearing.
- 2) On for hearing is Husband's Request for Order filed 12/18/2025. Husband asks the Court to (a) award him temporary guideline spousal support and (b) order Wife to pay rent for August – December in the amount of \$11,875. The hearing on Husband's Request for Order has been continued twice due to a lack of Proof of Service.
- 3) On 7/29/2026, Wife filed a Responsive Declaration and Memorandum of Points and Authorities asking the Court to deny Husband's request for Order or in the alternative, order Wife to pay temporary guideline spousal support for a period of three months and credit her with voluntary

1 post-separation financial assistance she provided Husband. Wife states the parties have been
2 separated for approximately one year and 10 months, which is longer than half the length of their
3 marriage. Wife states Husband left his previous employment in the healthcare industry in April
4 2019 (before the parties married) to start his own business. Wife states Husband opened two
5 businesses while they were married and although she had no involvement in the business'
6 management or operation, she became financially responsible for funding business expenses
7 through accounts opened in her name. Wife states Husband's financial position is his own doing.
8 Wife states Husband's second business operated at a loss and business expenses charged to an
9 American Express Business Platinum card in her name ranged approximately \$28,000 to \$35,000
10 per month. Wife states Husband accumulated \$19,304 in charges to the American Express card
11 after separation that Wife ultimately paid. Wife states the parties agreed to file a joint tax return
12 so that she could recover some of the money owes to her from their tax refund, but Wife ended up
13 transferring \$12,148.50 of the tax refund to Husband to assist him with his living expenses. In
14 addition, Wife states she paid one-half of rent for November 2024 (\$2,375), \$3,525 towards
15 shared cable and bundled automobile insurance, \$419.65 towards a Tonal membership
16 subscription, and paid \$1,120 towards Tonal exercise equipment. Wife states that, in total, she
17 provided approximately \$38,892.15 in financial assistance after separation, which included
18 payment of credit card balances, tax refund proceeds, housing costs, insurance, and other shared
19 expenses. Wife states that when Husband filed his Request for Order in December 2025, she was
20 earning more than what she earned during the marriage. However, Wife states that effective June
21 2026, her compensation was reduced by 20% and she is currently on administrative leave from
22 patient care while employment-related proceedings remain pending. Wife states, "I have not
23 received a final determination regarding my employment status or future compensation and am
24 presently unable to pursue alternative employment while those proceedings remain pending.
25 Going forward, my earnings are expected to be approximately \$6,800 net per pay period based on
26 my current 0.8 FTE compensation, although that income is also subject to change depending on
27 the outcome of the pending proceedings. Accordingly, the income reflected in my current Income
28 and Expense Declaration may not accurately reflect my earnings or earning capacity at the time
29 of the hearing." Furthermore, Wife states that Husband was controlling and abusive. Wife states

Husband threatened to kill both of them while they were driving in Hawaii and when she later suffered serious injuries in a hit-and-run accident that left Wife unable to walk or work for three months, Husband blamed Wife for getting herself hit by a car. Wife also states Husband monitored her electronic devices, listened to her therapy sessions, and blamed her therapist for the deterioration of their relationship. Wife states Husband's behavior made her fear for her safety and she had a "go bag" and a safe word that she established with her family and friends in the event she needed immediate assistance. Finally, Wife states she moved out of the parties' shared apartment in November 2024 and she paid the November rent and removed herself from the lease. Wife states their landlord agreed to forgive rent owed for August through December if Husband vacated the property by February 18. Therefore, there is no outstanding rent obligation for her to pay.

- 4) On 7/29/2026, Wife filed an Income and Expense Declaration. Wife states she is 40 years old and has a B.S. and an M.D. Wife currently works as a physician. Wife did not attach any paystubs to her Income and Expense Declaration and reports that she earned \$171,583 in year-to-date income as of 6/30/2026 and earned \$23,666 in June 2026. Wife states her monthly expenses total \$16,175, which includes \$3,743 in payments towards debts. Wife reports owing \$60,644 in credit card debt. Wife also owes \$35,900 for a car loan, and \$42,071 in student loans. Wife states that she has \$4,600 in cash, \$0 in investments, and \$150,000 in retirement accounts.
- 5) On 8/4/2026, Husband filed a Supplemental Declaration. Husband states his business involves educating Medicare beneficiaries regarding available coverage and assisting with appropriate enrollments. Husband also states he works with federal employees and retirees by educating them regarding retirement and employment benefits. Husband states, "This work is relationship-driven and requires substantial activity before income is generated. Developing a client may involve prospecting, educational seminars, presentations, consultations, and multiple follow-up appointments over several weeks. Rebuilding sustainable insurance income therefore requires consistent blocks of time to develop and maintain a pipeline of prospective clients." Husband states he has had to drive for Lyft to generate immediate income for transportation, food, telephone service, and other necessities, and the time he spends driving for Lyft means he has less time to perform seminars, presentations, client meetings, consultations, and follow-up that can

1 restore his earning capacity. Husband writes, “Temporary spousal support would allow me to
2 secure modest housing and meet basic living expenses while reducing the extraordinary amount
3 of time I must devote to generating immediate rideshare income. I could then redirect meaningful
4 working hours toward the professional activities that have already demonstrated the ability to
5 produce insurance business.”

- 6 6) On 8/4/2026, Husband filed an Income and Expense Declaration. Husband states he is 41 years
7 old. He completed 3 years of college and has a professional / occupational license in “insurance
8 (Life & Health).” Husband states he is a self-employed insurance agency owner. Husband states
9 he lost the insurance contracts that previously generated his primary income. Husband states he
10 closed one insurance sale last month but he is unable to consistently work on his insurance
11 business because he relies primarily on Lyft for living expenses. Husband states he earned \$4,264
12 last month (driving for Lyft) plus \$1,248 in “commissions or bonuses” (Husband did not attach
13 documentation explaining what this income is; the Court assumes this may be for the insurance
14 sale he reports having closed last month). Husband states he has \$86 in cash savings and \$0 in
15 other assets. Husband states his monthly expenses total \$6,602 per month. Husband states he
16 owes \$950 in credit card debt, \$5,000 for a loan, \$1,751 for a “damage claim,” and \$49,670 for
17 two used car loans. Husband attached documents showing that he receives CalFresh benefits.
- 18 7) On 8/4/2026, Wife filed a Statement of Support Calculations. Wife states the Court should order
19 retroactive temporary spousal support no earlier than 5/10/2026 because that is the date upon
20 which Husband served his Petition for Dissolution. Wife’s proposed support calculation (which
21 shows spousal support owed of \$4,233 per month) does not appear to be based upon figures set
22 forth in Husband’s Income and Expense Declaration filed 8/4/2026.
- 23 8) On 8/6/2026, Husband submitted a Reply Declaration for filing and then submitted an Amended
24 Reply Declaration for filing on 8/8/2026.

25 **B. Findings and Order**

- 26 1) In light of the substantial sums Wife has paid toward community debts and Husband’s expenses
27 since the parties’ separation, Husband’s request for retroactive temporary spousal support is
28 denied. However, the Court’s jurisdiction to determine the exact amount Wife has paid towards
29 community debts and Husband’s expenses since the parties’ separation is reserved for trial.

- 2) Effective 8/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated herein, Wife shall pay Husband \$3,874 per month in temporary spousal support. One-half shall be due and payable by the 1st and one-half shall be due and payable by the 15th of each month.
- 3) Temporary spousal support for August 2026 is due in full no later than 8/15/2026.
- 4) Wife shall make temporary spousal support payments for a period of 6 months. Wife's last temporary spousal support payment to Husband shall be in January 2027. The Court limits the temporary spousal support award to six months because the marriage was of short duration; Husband appears to be earning below his earning capacity; and Husband did not refute Wife's claims that she paid substantial sums toward the parties' expenses following separation. In addition, it is presently unclear whether the parties' community debts exceed their community assets and whether Wife will ultimately be entitled to reimbursement for community debts she has paid following separation. The Court is therefore reluctant to award temporary spousal support beyond six months when the final accounting may result in Husband owing Wife for his share of community debts. The Court's jurisdiction to order reimbursement for community debt payments paid by Wife after date of separation is reserved. In limiting temporary spousal support to a six month period, the Court is not foreclosing the possibility of an award of post-Judgment spousal support to Husband. The Court's jurisdiction to determine post-Judgment spousal support is reserved.
- 5) The temporary spousal support award set forth above is modifiable upon a showing of a material change in circumstances.
- 6) As Husband did not refute Wife's statement that no additional rent is owed to the landlord for the parties' former shared apartment, Husband's request that Wife pay \$11,875 for rent for August through December 2025 is denied.
- 7) The XSpouse inputs are based on the following:
 - a. Wife reports earning \$23,666 in gross per month.
 - b. Husband reported earning \$4,264 in Lyft income and \$1,248 (in what the Court assumes was from his business) last month, for a total of \$5,512 in reported income last month.
- 8) The Court will prepare the Findings and Order After Hearing.

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	19048	19048
Filing status	MFS->	<-MFS	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1 *	Nets(adjusted)	Husband		
Wages+salary	0	23666	Husband 4161	Payment cost/benefit	3874	3874
Self-employed income	5512	0	Wife 14886	Net spendable income	8035	8035
Other taxable income	0	0	Total 19048	Change from guideline	0	0
TANF+CS received	0	0	Support	% of combined spendable	42%	42%
Other nontaxable income	0	0	Addons 0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS 0	Total taxes	1351	1351
401(k) employee contrib	0	0	S.Clara SS 3874	Dep. exemption value	0	0
Adjustments to income	0	0	Total 3874	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-	Net wage paycheck	0	0
CS paid prev marriage	0	0		Wife		
Health insurance	0	0		Payment cost/benefit	-3874	-3874
Other medical expense	0	0		Net spendable income	11013	11013
Property tax expense	0	0		Change from guideline	0	0
Ded interest expense	0	0	Proposed	% of combined spendable	58%	58%
Charitable contributions	0	0	Tactic 9	% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS 0	Total taxes	8780	8780
Qual bus income ded	0	0	SS 3874	Dep. exemption value	0	0
Required union dues	0	0	Total 3874	# withholding allowances	0	0
Mandatory retirement	0	0		Net wage paycheck	14554	14554
Hardship deduction	0 *	0 *	Saving 0			
Other GDL deductions	0	0	Releases 0			
Child care expenses	0	0				

Wife pays Guideline SS, Proposed SS